

23-01315563	Plaintiffs Dan Ionita-Ariton, an individual, et al. ("Plaintiffs") oppose the motion. Plaintiff's request for judicial notice of the First Amended Complaint is GRANTED. Code of Civil Procedure section 579 states: "In an action against several defendants, the Court may, in its discretion, render judgment against one or more of them, leaving the action to proceed against the others, whenever a several judgment is proper." (Code Civ. Proc., § 579.) "Under this section the discretion vested is a judicial one, to be exercised by the court, and not the clerk." (<i>Lynch v. Bencini</i> (1941) 17 Cal.2d 521, 530.) "Despite the language of Code of Civil Procedure section 579 (judgment may be entered 'against' one or more defendants), the section has been consistently construed as authorizing entry of judgment 'in favor' of one or more defendants." (<i>Oakland Raiders v. National Football League</i> (2001) 93 Cal.App.4th 572, 577, as modified on denial of reh'g (Nov. 15, 2001).) "[T]here is ample authority for the proposition that the trial court, in its discretion, may enter judgment in favor of one or more defendants when all issues between those defendants and the plaintiff have been adjudicated, even though the action remains pending against those defendants who have not obtained adjudication of all issues." (<i>Oakland Raiders v. National Football League</i> (2001) 93 Cal.App.4th 572, 578, as modified on denial of reh'g (Nov. 15, 2001); see also <i>Heritage Marketing & Ins. Services, Inc. v. Chrustawka</i> (2008) 160 Cal.App.4th 754, 764 ["Here, the grant of summary adjudication resolved all issues alleged in the complaint between plaintiffs and defendants Price and Matonic. Therefore, the court had the discretion to render judgment in their favor."].) "It is irrelevant whether . . . there were potential claims not included in the complaint." (<i>Heritage Marketing & Ins. Services, Inc. v. Chrustawka</i> (2008) 160 Cal.App.4th 754, 764.) "The pleadings frame the issues on a motion for summary adjudication and a party cannot successfully resist such a motion based on allegations that are not contained in the complaint." (<i>Ibid.</i>)
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		For example, in <i>Oakland Raiders v. National Football League</i> (2001) 93 Cal.App.4th 572, the court ruled as such after all issues between the plaintiff and moving defendants were “resolved by way of summary adjudication orders.” (<i>Ibid.</i>) The court held the same in <i>Heritage Marketing & Ins. Services, Inc. v. Chrustawka</i> (2008) 160 Cal.App.4th 754. Such is the case here. Defendant successfully moved for summary judgment as to all issues between Plaintiff and Defendant. (ROAs 408 and 420.) As such, there are no remaining issues to be adjudicated between Plaintiff and Defendant. There are also no other pleadings in this case and therefore no other causes of action alleged against Defendant. In its discretion, the Court GRANTS the motion to enter judgment in favor of Defendant Action Property Management, Inc. <i>Defendant to give notice.</i>
108	Arismendi vs. El Torito Restaurant, 25-01504805	Plaintiff Jacqueline Arismendi moves to compel defendant FM Restaurants El Torito Opco, LLC (sued as El Torito Restaurant) to produce documents responsive to plaintiff’s Requests for Production of Documents, Set One and for monetary sanctions against defendant in the amount of \$1,200. Defendant has filed a Notice of Non-Opposition which states that the responsive documents have now been produced. Defense counsel’s declaration confirms the same. Thus, the Motion to Compel is DENIED as MOOT. However, Plaintiff’s request for monetary sanctions against defendant in the amount of \$1,200 is GRANTED, as the Court finds defendant’s failure to provide the responsive documents for over five months, despite repeated extensions, necessitated the filing of the instant motion and was without substantial justification. (Code Civ. Proc., § 2031.310(h); Cal. Rules of Court, rule 3.1348(a).) Sanctions to be paid within 30 days. <i>Moving party to give notice.</i>